STANDARD OPERATING PROCEDURE			I-5400	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/15/08	DATE REVISED **04/09/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE INVESTIGATIONS	RESOURCES CALEA 42.2.6, 43.1.1, 43.1.5			
SUBJECT NARCOTICS INVESTIGATIONS	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to provide guidelines for investigations conducted by the Narcotics Unit.

II. Policy:

A. Types of Narcotics Investigations: The Sheriff's Office is involved in three types of narcotics investigations:

1. **In-House Investigation:** This is an on-going investigation into drug activity in Sarpy County. In this type of investigation, the Sheriff's Office supplies all the manpower, finances and equipment needed to complete the investigation.

2. **Multi-Agency Investigation:** This is an on-going investigation involving two or more law enforcement agencies within metro area. Resources are pooled to complete the investigation. In this type of investigation, federal agencies may provide support for the investigation, but their involvement does not merit the requirements of a Federal Task Force.

3. **Federal Task Force:** This type of investigation incorporates a much broader spectrum of federal participation.

III. Procedure:

A. Case Management

1. All tips regarding vice, drugs, and organized crime shall be forwarded to the Narcotics Unit Sergeant. Every complaint received shall be recorded and entered in a complaint filing system.

2. Information received by the Narcotics Unit Sergeant shall be evaluated to determine the appropriate investigative response.

3. The following minimum criteria shall be used in evaluating intelligence information:

a) The accuracy and validity of the information.
b) The nature of the criminal activity.
c) The scope and relative importance of the problem.
d) The quantity of information and leads available.
e) The unit resources available.
f) The operational problems, if any.

4. If the Narcotics Unit Sergeant determines an active case should be opened, a Report Number shall be generated, and the case will be assigned to an investigator. The Narcotics Unit Sergeant will maintain an Activity Log regarding all active cases and the activity related to those cases.

5. The Sarpy County Sheriff's Narcotics Unit is a part of the Metro Drug Task Force. As such, information is shared freely between Task Force agencies, in addition to any Federal Agencies who work with the Task Force.

a) Requests for information from agencies/officers outside of known contacts shall be verified prior to providing any information. The Narcotics Unit Sergeant shall document in the Activity Log any information received from or conveyed to an outside agency.

b) Requests for information from agencies outside of known contacts shall be documented in a report.

6. The Investigations Division Commander is responsible for notifying the Sheriff of any critical information as needed.

7. Quarterly supervisor meetings are held in the Investigations Division with the supervisors and command officers. The Division Commander provides the Sheriff with any notable information from these meetings.

B. Covert Operations: Covert Operations involve Surveillance, Undercover Operations, and Decoy Operations.

1. Surveillance

a) **Long Term Surveillance:** Long-Term Surveillance is labor intensive and generally conducted as part of a task force.

(1) All long-term surveillance operations will be approved by the Division Commander.

(2) Deputies will operate under the operational guidelines of the task force. The supervisor shall keep the Division Commander informed regarding all operational duties and procedures.

(3) The supervisor is responsible for ensuring that proper safety procedures are being followed.

(4) Deputies will complete reports on all relevant activities at the discretion of the Narcotics Unit Supervisor and/or Investigations Command.

b) **Short-Term Surveillance:** Short-Term Surveillance activities are generally conducted at the unit level.

(1) Authorization from a supervisor will be obtained prior to conducting short-term surveillance.

(2) The supervisor will be briefed regarding all risks, safety concerns, and any other pertinent information.

(3) The supervisor need not be present at the scene but must be accessible by radio or phone.

(4) Reports will be completed for all surveillance operations at the discretion of the Narcotics Unit Supervisor and/or Investigations Command.

c) **Drive-by Surveillance:** Drive-by Surveillance is brief in nature and will be conducted during a normal shift. It may be conducted related to a “trash pull.”

(1) This surveillance may be conducted as a normal part of an investigation. It does not require specific approval unless there are safety or risk factors associated.

2. Undercover Operations

a) The Narcotics Unit Supervisor shall approve any group operations within the unit.

b) A supervisor, from the Sarpy County Narcotics Unit or other participating agency, will be present for any group operation.

c) An “Ops Plan” shall be completed for any group operation. Within the “Ops Plan” will be all information regarding the activity to be undertaken, as well as all safety information, e.g., closest hospital, stand-by medics, rescue vehicles, etc.

d) Reports shall be completed for all notable activities at the discretion of the Narcotics supervisor and/or Investigations Command.

3. **Undercover Narcotics Purchases:** Regardless of the nature, size, or scope of an undercover narcotics transaction, no deputy or confidential informant shall be placed in undue jeopardy. The risk assessment of each transaction shall be the responsibility of the Narcotics Supervisor.

a) A supervisor will approve all undercover drug purchases.

b) No deputy shall make an undercover purchase of narcotics without the physical presence of at least a second law enforcement officer. The second officer shall be located in such a manner as to be able to summon and provide emergency assistance if required and, if possible, to observe the transaction.

c) When feasible, all transactions shall be monitored and recorded with the use of electronic listening equipment.

d) Reports will be completed for all undercover drug purchases.

4. **Decoy Operations:** Decoy Operations are generally conducted as part of a task force.

a) All decoy operations will be approved by the Division Commander.

b) Deputies will operate under the operational guidelines of the task force. The supervisor shall keep the Division Commander informed regarding all operational duties and procedures.

c) A supervisor will be present for all decoy operations. He/she will ensure the safety of all persons involved.

d) Deputies will complete reports on all relevant activities at the discretion of the Narcotics Supervisor and/or Investigations Command.

C. **Search Warrants:** Narcotics investigators shall adhere to Investigations Division policy I-3200, Search Warrants, when planning and executing narcotics search warrants with emphasis on completing the SWAT Risk Assessment form and consulting with the SWAT Commander prior to service.

D. **Jurisdiction:** It is the policy of the Sarpy County Sheriff's Office that any time an investigation encompasses a jurisdiction other than Sarpy County, a member of the narcotics unit for the jurisdiction involved shall be notified before any undercover operations are conducted.

1. A member of the Omaha Police Department Narcotics Unit may serve as the second law enforcement officer during an undercover operation conducted in Omaha or Sarpy County.

2. In those areas or jurisdictions that do not have a narcotics unit, coordination shall be made with the Nebraska State Patrol Narcotics Unit.

E. **Confidential Informants:** The development and utilization of confidential informants (CIs) is a critical aspect of narcotics investigations and when properly handled can be the most valuable resource available to a narcotics investigator.

1. **Crimes Committed by Confidential Informants:** Confidential informants shall not be afforded any leniency regarding criminal activity. When it comes to the attention of any narcotics investigator that probable cause exists for the arrest of a CI regarding any criminal activity an arrest shall be made.

2. **Establishing a Reliable Confidential Informant:** To establish reliability, a confidential informant must complete one of the following:

a) Make a controlled purchase of narcotics under the direct supervision and, if possible, the direct observation of a narcotics investigator.

b) Provide information which ultimately results in the arrest of a person or persons on narcotics related charges.

c) Provide information which results in the arrest of a person wanted for a criminal warrant or who was involved in criminal activity of any type.

d) Provided information which led to the issuance of a search warrant which was successful served.

e) Completed any of the above with another law enforcement agency.

3. **Control Deputies:** Every confidential informant utilized by the Narcotics Unit shall be assigned a control deputy. The control deputy shall normally be the primary point of contact for the CI. The control deputy shall also be responsible for developing the individual as an informant. Control deputies are responsible for the following:

a) The assigned control deputy shall complete a Confidential Source Packet each confidential informant using or receiving funds or who has furnished information which may be used to obtain a search warrant or make an arrest.

b) When assigned a confidential informant the control deputy shall complete a background investigation including NCIC/NCIS, Sarpy County, Douglas County and Omaha. A copy of the background investigation and a photo of the CI shall be maintained in the Confidential Source Packet. The Confidential Source Packet shall be assigned an identification number.

c) The Confidential Source Packet shall be maintained by the Narcotics Unit in a secure location determined by the Investigations Division Commander.

d) CI information shall be entered into a master file. This master file shall be kept in a secure location determined by the Investigations Commander.

4. Meeting with Confidential Informants:

a) Two law enforcement officers shall always be present when meeting with any confidential informant. If not in the immediate presence of the CI, the second law enforcement officer shall have constant visual contact with the deputy/officer and the informant. Deputies shall take extra care to avoid even the appearance of any inappropriate sexual conduct.

b) CIs must be advised that they shall be searched for contraband prior to making any controlled purchases of narcotics. Deputies shall also search for weapons at any time they believe their safety may be in jeopardy.

c) Should a control deputy determine during a meeting with a CI that he or she is under the influence of narcotics or alcohol, the CI shall not be utilized at that time for information or to make a controlled purchase.

5. Juveniles:

a) Juveniles shall not be used as Confidential Informants without consultation with the Sheriff and the County Attorney's Office.

6. Disbursement of Funds: The Narcotics Unit shall maintain an accurate accounting system to track the payment of confidential informants. Access to these records will be restricted to personnel in the Investigations Division with a need to know.

a) Confidential informants may be compensated for any of the following:

(1) Making a controlled purchase of narcotics.
(2) Providing information that leads to an arrest or the issuance of an arrest warrant.
(3) Providing information leading to the issuance of a search warrant.
(4) Providing information that leads to the recovery of stolen property.
(5) Providing information pertaining to an ongoing criminal investigation or criminal activity.

b) All monies paid to informants shall be documented with a receipt form including detailed information regarding the informant's actions. The informant shall sign the receipt.

c) An information report shall be completed describing the confidential informant's actions or information. If a narcotics purchase was made, the type of narcotic and the weight of the purchase shall be documented in the report.

d) All fund disbursements made to confidential informants must be approved by the Narcotics Supervisor or a command officer prior to payment.

F. **Narcotics Funds:** All funds utilized by the Narcotics Unit shall be listed on a Daily Expense Sheet.

1. The Daily Expense Sheet shall include the amount spent, the location, and the items purchased.

2. Each Daily Expense Sheet shall be accompanied by an information report detailing the reason for the disbursement of funds.

3. The Daily Expense Sheet shall be completed at the end of the deputy's duty shift and shall be reviewed and signed by both the deputy and the Narcotics Supervisor.